Exhibit 10.1

COLLABORATION AGREEMENT

THIS COLLABORATION AGREEMENT (**"Agreement"**) is made as of this 18th day of August 2014 (the **"Effective Date"**), by and between Capsugel US, LLC and its Affiliates with an address at 412 Mt. Kemble Ave, Suite 200C, Morristown, NJ 07960 (**"CAPSUGEL"**) and Cardax, Inc., and its Affiliates, with a corporate address at 2800 Woodlawn Dr., Suite 129, Honolulu, HI 96822 (**"CARDAX"**). CARDAX and CAPSUGEL are each a "Party" and together constitute the "Parties"

RECITALS

WHEREAS, CAPSUGEL is experienced in formulating, developing, manufacturing, testing and packaging of health and nutrition products; and

WHEREAS, CARDAX is experienced in developing products that are based on its astaxanthin technologies; and

WHEREAS, CAPSUGEL and CARDAX desire to enter into an arrangement under which the Product (as defined below) will be formulated and developed for the purpose of identifying a marketing partner(s) (**"Marketer"**) for Marketer's onward sale of the Product in the Territory.

NOW, THEREFORE, the Parties hereto agree to the following:

SECTION 1

DEFINITIONS

The following terms for the purpose of this Agreement shall have the following respective meanings:

1.1 **"Active Ingredient"** shall mean the synthetic Astaxanthin and/or esters thereof that will be formulated in the Product as the active ingredient of the Product.

1.2 **"Adjusted Net Sales"** shall mean [***].

1.3 **"Administrative Cost"** shall mean [***].

1.4 **"Affiliate"** shall mean, with respect to either Party, all entities which, directly or indirectly, are controlled by, control or are under common control with such Party. For purposes of this Agreement, the word "control" shall mean the possession, directly or indirectly, of the power to direct or cause the direction of the management and policies of an entity, including through ownership of more than fifty percent (50%) of the voting shares or interest of an entity; provided, however, with respect to CAPSUGEL, the term "Affiliate" shall be limited to entities who directly or indirectly through one or more intermediaries are controlled by the parent of CAPSUGEL's direct parent entity and with respect to CARDAX the term "Affiliate" shall not include Cardax Pharmaceuticals, Inc.

CERTAIN PORTIONS OF THIS EXHIBIT HAVE BEEN OMITTED PURSUANT TO A REQUEST FOR CONFIDENTIAL TREATMENT UNDER RULE 24B-2 UNDER THE SECURITIES EXCHANGE ACT OF 1934. OMISSIONS ARE DESIGNATED [***]. A COMPLETE VERSION OF THIS EXHIBIT HAS BEEN FILED SEPARATELY WITH THE SECURITIES AND EXCHANGE COMMISSION.

1.5 **"Applicable Laws"** shall mean all applicable laws, statutes, ordinances, codes, rules and regulations applicable to the formulation, development and/or manufacture, marketing, distribution sale, and disposal of the Product or any aspect thereof and the obligations of CAPSUGEL or CARDAX, as the context requires under this Agreement.

1.6 **"Annual Period"** shall mean the twelve (12) month period beginning on the first day in which the Launch Date occurs and each twelve (12) month period beginning on the anniversary of such day thereafter.

1.7 "**Commercially Reasonable Efforts**" means a Party's reasonable efforts and diligence, consistent with professional business standards generally practiced in the health and nutrition industry, applied in accordance with the Party's commercially reasonable business, legal, medical and scientific judgment, including the efforts and resources the Party would use for a product owned by it or to which it has rights, which is of similar market potential at a similar stage in its product life, taking into account the competitiveness of the marketplace, the proprietary position of the compound, the Applicable Laws, the profitability of the applicable products, and other relevant factors including, without limitation, technical, legal, scientific or medical factors.

1.8 "**Development Plan**" shall have the meaning set forth in Section 2.1.

1.9 **"Disclosing Party"** shall have the meaning set forth in the Confidentiality Agreement.

1.10 **"Formulation"** means a specific combination of excipient(s) that can formulate the Active Ingredient, as well as compounds other than the Active Ingredient, developed as a result of the work conducted under the Development Plan.

1.11 **"Force Majeure"** shall have the meaning set forth in Section 10.5.

1.12 **"Indemnified Party"** shall have the meaning set forth in Section 8.3.

1.13 **"Indemnifying Party"** shall have the meaning set forth in Section 8.3.

1.14 **"Intellectual Property Rights"** means a composition of matter, formula, process, method of use, invention, improvement, business name, domain name or database right to the extent any of the foregoing is protected in a utility model, trademark, service mark, trade name or business name, copyright, registered design, design right, patent, know-how, trade secret, rights in or to confidential information all goodwill related thereto and any other intellectual property right of any nature whatsoever throughout the world (whether registered or unregistered and including all applications and rights to apply for the same).

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